RESERVATION AGREEMENT

CREST NICHOLSON

SELLER'S DETAILS

Organisation name
Crest Nicholson

Telephone
01932 580555

Address
500 Dashwood Lang Road, Bourne Business Park, Addlestone, Surrey

Email address

Postcode
KT15 2HJ

Website
https://www.crestnicholson.com

BUYER 1 DETAILS

Name
Mrs Jade Taylor

Address
25 Abbotts Road, Bishop Waltham, Southampton SO32 1RE

Telephone
07917106124

Email
jady@dancepower.org

Source of Funds

BUYER 2 DETAILS

Name
Mr Paul Robert Taylor

Address
25 Abbotts Road, Bishop Waltham, Southampton SO32 1RE

Telephone
07412385323

Email
paulrobertayler@gmail.com

Source of Funds

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PLOT AND RESERVATION DETAILS

Development name
Albany Wood

Plot no.
0034 - 14672PA

Dwelling type
House

With garage/parking space
2G - Double Garage

Plot address
10 Colt View, Bishops Waltham, Southampton, Hampshire

Town
Southampton

Postcode
SO32 1TF

Agreed Purchase Price
£685,000

Agreed purchase price remains valid until the expiry or cancellation of this agreement.

Scheme
the Property is being sold subject to the buyback of 25 Abbots Road pursuant to the terms of the Memorandum of Agreement dated 24 May 2023

Reservation date

Initial Reservation Period
42 calendar days starting on the day after the draft contract is received by your solicitor on your behalf (or such further time as we may mutually agree)

Reservation fee
£1,000

Reservation fee method

Anticipated build completion date

Stage of construction at reservation date
Roof Structure & Gables

Reservation details
Release Price £699,950 discount £14,950. Incentives to include: SDLT £21,750 Carpet to landing and four bedrooms. Amtico to wet areas and entire ground floor. Wardrobes to all bedrooms . Full height tiling to family bathroom and both en-suites. Half height tiling to WC. Upgraded kitchen and silestone to kitchen and utility. Electric socket, light, garden tap and turf to rear garden

RETENTION OF RESERVATION FEES

If the reservation expires or is cancelled 14 days from the Reservation date ("the cooling off period") we will retain up to £600 of the Reservation fee in respect of such of the fees set out in clause 9 of the conditions below as may be applicable.

TENURE

Freehold		Leasehold		Lease terms	Years	Commencing on
					0	

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PURCHASER'S SOLICITOR DETAILS

Name

Contact

Address

Telephone

Email

SELLER'S SOLICITOR DETAILS

Name

Contact

Address

Telephone

Email

MORTGAGE PROVIDER DETAILS

Name of firm

Contact

Broker ref number

Address

Town

Postcode

Telephone

Email

Mortgage size required?

IFA qualified?

No

Your contact

Mortgage already arranged?

No

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WARRANTY PROVIDER DETAILS

Name of provider

NHBC

Website

https://www.nhbc.co.uk/

Contact details

0800 035 6422

PRIMARY EARNER EMPLOYMENT DETAILS

Occupation/position

Software Engineer

Name of employer

Address of employer (or accountant if self-employed)

How long with present employer?

SECONDARY EARNER EMPLOYMENT DETAILS

Occupation/position

Choreographer

Name of employer

Address of employer (or accountant if self-employed)

How long with present employer?

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CONDITIONS RELATING TO THIS RESERVATION: SUBJECT TO CONTRACT

1. In return for you paying the Reservation Fee, we agree to reserve the plot specified above ("Property") for you at the Agreed Purchase Price until the end of the Reservation Period or this Reservation Agreement is cancelled by you in accordance with the terms set out below.

2. You have the right to cancel this Reservation at any time by confirming this to us in writing whereupon this Reservation Agreement will immediately terminate.

3. Unless expressly agreed otherwise in writing the Reservation Period shall be for an initial period of 42 calendar days starting on the day after the draft contract is received by your solicitor.

4. The Reservation Period may be extended at any time prior to its expiry by mutual agreement provided that such agreement is confirmed in writing by the parties or their solicitors (for which purpose email confirmation shall be adequate). For the avoidance of doubt, we will not agree to extend the Reservation Period where any of the following circumstances apply to your purchase of the Property:
   a. We reasonably conclude, having regard to all the circumstances, that exchange of contracts will not be reached within a further 42 days, for example because your chain (if you have one) has collapsed; or

   b. You have not complied with the following requirements, as set out in clause 13 below:
      i. Instructed a legal advisor and/or provided them with the information, funds and instructions they require
      ii. Instructed an independent financial advisor or taken steps towards an application for mortgage loan finance necessary to ensure a timely mortgage offer;
      iii. In the case of a part exchange, supplied your solicitor with all reasonably required details about your current property for onward transmission to our solicitor; and/or
      iv. iv. Provided all necessary identification for our anti-money laundering checks and/or in our sole discretion we are not satisfied that we can verify your identity or any person who controls you or the source of funds and wealth to be used for the purchase of the Property

5. If contracts for the purchase of the Property have not been exchanged ("Exchange of Contracts") by the end of the Reservation Period (including any agreed extensions) this Reservation Agreement will automatically expire and come to an end and we shall be entitled to re-market the property immediately thereafter.

6. We will notify you in writing of any Major Change which occurs after the date of this Reservation Agreement. A Major Change is a change that alters the size, appearance or value of the Property (including the internal layout) from what was shown to you before the date of this Reservation Agreement. If we notify you of any Major Change we recommend you seek independent legal advice.

7. You have the right to cancel this Reservation Agreement by giving us notice in writing within 14 days of us notifying you of any Major Change. In those circumstances, we will refund you the Reservation Fee (and any other pre-payments) without deductions. After this 14 day period you will be deemed to have accepted such Major Change if no notice is received by us.

8. We will also keep you informed of any Minor Change which occurs after the date of this Reservation Agreement. A Minor Change is a change to the design, construction or materials of the Property which are not Major Changes. Such Minor Changes do not give you the right to cancel this Reservation Agreement or the Contract and your agreement to them is not required.

9. If this Reservation Agreement:
   a. is cancelled by you before the expiry of 14 calendar days from the date of this Reservation Agreement, or within 14 days of us notifying you of a Major Change under clause 6 above, we agree to pay back the Reservation Fee to you in full;

   b. expires, or is cancelled by you after the expiry of 14 calendar days from the date of this Reservation Agreement, we will pay back within 14 calendar days of such expiry/cancellation the Reservation Fee less any of the following charges that may be applicable:

      i. In all cases a contribution of £100 towards our own internal administration costs and management time in dealing with your reservation and its cancellation;

      ii. If our solicitors have been instructed in respect of your purchase and we are liable for any abortive costs, disbursements or expenses, a contribution towards such costs, disbursements or expenses of up to £250;

      iii. If our solicitors have been instructed in respect of a part exchange of your property and we are liable for any abortive costs, disbursements or expenses, a contribution towards such costs, disbursements or expenses of up to £250;

      iv. If you have taken advantage of any purchasing scheme and we are liable to any charges under such scheme, a contribution towards such expenses of up to £250.

10. You understand that 10% of the Agreed Purchase Price will be required as a deposit on Exchange of Contracts. The Reservation Fee will be used towards payment of the deposit due on Exchange of Contracts. Your Reservation Fee is secured with the Seller.

11. You agree to notify your legal advisor and us, in writing, prior to exchange of contracts what spoken statements, if any, you are placing material reliance upon so that they can be included in the Contract.

12. You are responsible for all costs and expenses incurred by you in the purchase of the property, unless otherwise set out in this Reservation Agreement and in the Memorandum of Agreement dated 24 May 2023. This may include Stamp Duty, engrossment fees and legal costs.

13. You agree to use all reasonable endeavours to proceed with the purchase of the property including taking all of the following steps that are applicable to your purchase (to the extent you are able to do so within your reasonable control):

    a. Instruct a legal advisor and/or provide them with the information, funds and instructions they require;

    b. Instruct an independent financial advisor and/or take steps towards an application for mortgage loan finance necessary to ensure a timely mortgage offer;

    c. In the case of a part exchange, supply your solicitor with all reasonably required details about your current property for onward transmission to our solicitor; and

    d. Provide all necessary identification documents and information for our anti-money laundering checks.

14. You acknowledge that the Anticipated Build Completion Date is an estimate and that we may need to make reasonable changes to the date and will inform you of these.

15. The availability of optional extras is subject to the construction stage of the Property. Specific terms and conditions apply to the purchase of options and these can be found in the Options Form which will be given to you when/if they are ordered.

16. No variation of or changes to this Reservation Agreement (other than to the Reservation Period the process for which is set out above) and/or to the Property (e.g. to the design or specification) will be effective unless it is set out in writing and either signed by you and us or our legal representatives on our behalf.

17. The nature and method of assessment of any applicable Event Fees (i.e. fees payable upon certain events taking place e.g. fees for providing consent, deeds of covenants) are set out in the Customer Information Guide

18. The information in this Reservation Agreement may be processed by us to progress the purchase, and for use in customer surveys under the Consumer Code for Home Builders or the New Homes Quality Code as applicable; all such information to be processed in accordance with the General Data Protection Regulation and The Data Protection Act 2018, as set out in our Privacy Policy **https://www.crestnicholson.com/legal-information/privacy-policy**

19. Key principles surrounding the structural survey by Trinity Rose:
    a. Following exchange of contracts and prior to completion of the Property the Seller and Buyer will jointly instruct Trinity Rose (or other agreed accredited RICS surveyor) to undertake a structural survey of the Property (paid for by the Seller) in order to identify any non-compliance with NHBC technical standards or Building Regulations.
    b. Subject to (iv) if no issues are identified by the surveyor the sale will proceed to completion.
    c. If works are identified by the surveyor which are reasonably and properly required to meet NHBC technical standards or Building Regulations then the Seller will carry out these works within a reasonable time period.
    d. Following receipt of the surveyor's report the Buyer will be entitled promptly, and acting reasonably and in good faith, to raise any issues with respect to the compliance with NHBC technical standards or Building Regulations. If such issues are agreed by the Seller they will carry out the works reasonably and properly required to address such issues within a reasonable time period. If such issues or works are not agreed by the Seller they will be referred to the surveyor for determination whose decision will be final and binding on the parties. If the surveyor determines further work should be carried out then the Seller will carry out those works within a reasonable time period.
    e. The surveyor will certify once all the required works have been satisfactorily completed. The sale will then proceed to completion.
    f. The arrangements with respect to the structural survey are separate from and do not replace the Buyer's entitlement to carry out a pre-completion inspection.

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OTHER IMPORTANT INFORMATION

- We strongly recommend you seek independent legal advice as well as, where appropriate, independent mortgage advice
- You have the option appoint a suitably qualified inspector to carry out a pre-completion inspection before legal completion of your purchase takes place.
- To assist you in progressing smoothly and efficiently through the process, you; should instruct a solicitor to exchange contracts and, in turn, legally complete your purchase may need an independent financial advisor. To the extent it is helpful to you in identifying professionals to act on your behalf, we have supplied you with the List of Solicitors and Independent Financial Advisors. There is no obligation on you to instruct any of these suggested firms and Crest Nicholson is not recommending that you use any particular solicitor and/or independent financial advisor. You are free to instruct any firm you wish to act for you.
- We strongly recommend you seek independent legal advice as well as, where appropriate, independent mortgage advice.
- This Reservation Agreement and the other contracts and documents required as part of the purchasing process are legally binding. Although we hope you will never require a complaints procedure, details of our process are set out in the Customer's Information Guide and on our website.
- A copy of the New Homes Quality Code can be found on the NHQB website here: **https://www.nhqb.org.uk/homebuyers/downloads.html**

PART EXCHANGE/SMOOTHMOVE (IF APPLICABLE)

- The availability of Part Exchange is at our discretion and is subject to specific terms and conditions
- PLEASE NOTE: You confirm that in the event of Part Exchange or Smoothmove, if an estate agent acting on our behalf introduces a purchaser to your property who subsequently proceeds to complete the purchase, you will pay any reasonable estate agents fees incurred in full in the event that you do not proceed to complete the agreed transaction with us.
- PLEASE NOTE: You confirm that you will compensate us in full for any costs in respect of Stamp Duty Land Tax as a result of any false assertion that your part exchange property is your primary residence.

YOUR PERSONAL INFORMATION

We will look after the information you provide us and we will never sell it to third parties.

The personal information that you provide to us will be used by us in accordance with our Privacy Policy which can be accessed at **www.crestnicholson.com/privacy-policy**. This may include disclosures of some of that information to parties involved in the sale process including your solicitors, nominated IFA or finance scheme provider, those involved with providing your new home warranty or after sales support, law enforcement or anti-fraud and credit reference agencies and for use in customer surveys under the Home Builders Federation (HBF).

We have recorded your marketing preferences from your initial contact with us. If at any time you wish to change these please contact us at **privacy@crestnicholson.com**.

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THIS IS A LEGAL AGREEMENT; IF IN ANY DOUBT AS TO ITS MEANING OR EFFECT, THE BUYER SHOULD SEEK LEGAL ADVICE BEFORE SIGNING IT.

This document is signed to confirm that this information represents the nature and content of the Property being sold and supersedes any prior visual, written or verbal statements which may have been made or given.

☐ I have received and understood the information provided to me at the pre-reservation meeting and within the pre-reservation checklist.

I confirm that I am not relying on or taking into account any information provided to me by spoken statements (other than the information listed above) except as noted in the box below:

☐ I confirm that I have received legal advice prior to signing the reservation agreement

PURCHASER 1

Signed

Date

PURCHASER 2

Signed

Date

AUTHORISED SELLER'S REPRESENTATIVE

Signed

Position

Sales Executive

Date